

Anshul Varshney v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 8 October 2025 · Writ-C No. 33704 of 2025 · **Writ disposed of; AO to hear objection under cl. 6.8 after part-deposit.**

HEADNOTE

Where it is unclear whether hearing was given before an electricity assessment demand, the writ is disposed of directing the Assessing Officer to decide the consumer's objection under clause 6.8 of the U.P. Electricity Supply Code, 2005 after personal hearing and confrontation with adverse material, subject to deposit of part of the disputed demand.

FACTUAL SUMMARY

The petitioner challenged a provisional assessment notice dated 8 April 2025 and a final demand notice dated 8 May 2025 seeking recovery of Rs. 2,73,355 towards electricity dues. He alleged that no opportunity of hearing had been afforded before the demand was raised. The High Court observed that it was not clear whether the assessment procedure had been fully complied with, and that keeping the writ pending or calling for a counter affidavit would serve no useful purpose.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

hearing on assessment objection

HOLDING

To the extent the petitioner may not have been given opportunity of hearing before the assessment demand, one opportunity is to be given before the Assessing Officer under clause 6.8 of the U.P. Electricity Supply Code, 2005. Subject to deposit of Rs. 27,000 towards the disputed demand within one month and filing of an application within a further week, the Assessing Officer shall decide the objection by a reasoned speaking order after confronting the petitioner with all adverse material and giving personal hearing, preferably within two months. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT PROCEDURE WAS IN FACT FULLY COMPLIED WITH, AND WHETHER OPPORTUNITY OF HEARING WAS GIVEN BEFORE THE DEMAND.

¶ 3

NOT DECIDED — MERITS OF THE DEMAND OF RS. 2,73,355.

¶ 4-5